

# Mini Paper — 1.5 Legal, Moral, Cultural & Ethical Issues

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Time: ~35 minutes · Total: 30 marks · Answer all questions.

Mark your work against the mark scheme at the end; aim for ~1 minute per mark.

## Questions

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1. State the **three offences** under the Computer Misuse Act 1990 and give **one example** of each. [4] (AO1)
  2. A fitness-app company stores users' names, email addresses, locations and heart-rate data. Describe **two principles** of the Data Protection Act 2018 / GDPR the company must follow, explaining what each means for how it handles this data. [4] (AO1/AO2)
  3. A disgruntled employee uses a manager's password to log into the company file server, copies a confidential client list, and then deletes several project files before leaving. Identify **which law and which offence(s)** have been broken, mapping each action to an offence, and justify your answer. [5] (AO2)
  4. A software developer copies a section of source code from a rival company's product into their own application and sells it. (a) Name the law that has been breached and explain why copying the code is an offence. [3] (AO1/AO2) (b) Explain why copying the rival's *underlying idea or algorithm*, rather than the code, would **not** be an offence under this law. [2] (AO2)
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5. A national government proposes a new system that uses **artificial intelligence and automated decision making** to decide which citizens receive welfare benefits, replacing human caseworkers. The AI is trained on years of historical claims data.
- Discuss the moral, ethical, legal and social issues raised by this proposal. Consider the impact on different stakeholders, weigh the benefits and drawbacks, and reach a justified conclusion.* [12] (AO2/AO3)
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## Mark scheme

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**Question 1 [4] (AO1)** — 1 mark per offence correctly stated (max 3) plus 1 mark for valid examples; total capped at 4. - **Offence 1:** Unauthorised access to computer material — e.g. logging into someone else's account / guessing a password. - **Offence 2:** Unauthorised access with intent to commit or facilitate a further offence — e.g. hacking a bank to commit fraud. - **Offence 3:** Unauthorised modification of computer material — e.g. spreading a virus/ransomware or deleting files.

*Examiner tip:* Name all three offences before adding examples — the offences carry most of the marks, not the examples.

**Question 2 [4] (AO1/AO2)** — Up to 2 marks per principle (1 for stating it, 1 for applying it to this data); max 4. Any two of: - **Integrity and confidentiality (security)** — heart-rate and location data must be kept secure, e.g. encryption and access control. - **Data minimisation** — only collect data needed for the fitness service (e.g. question whether constant location is necessary). - **Storage limitation** — must not keep the data longer than necessary. - **Purpose limitation** — only use the data for the stated fitness

purpose, not sell it to insurers/advertisers. - **Lawful, fair and transparent** — have a lawful basis and tell users how their data is used. - **Accuracy** — keep records accurate and up to date.

*Examiner tip:* Tie each principle to the *specific* data in the scenario (location, heart-rate) — generic definitions alone lose the application marks.

**Question 3 [5] (AO2)** — 1 mark for naming the Act; 1 mark per action correctly mapped to an offence; up to 2 marks for justification. Max 5. - The **Computer Misuse Act 1990** applies throughout (1). - Using the manager's password to log in = **Offence 1, unauthorised access** (1). - Copying the confidential client list with intent to use/take it = **Offence 2, unauthorised access with intent to commit a further offence** (1). - Deleting project files = **Offence 3, unauthorised modification** (1). - Justification: access was without authorisation regardless of damage; the deletion impairs/modifies data; strong answers note that a **DPA** breach may also arise if the client list is personal data taken from the controller (1).

*Examiner tip:* Map *each* action to a numbered offence rather than just naming the Act — the question rewards correct 1/2/3 labelling.

**Question 4 [5] (AO1/AO2) (a) [3]** — Up to 3 marks: - Names the **Copyright, Designs and Patents Act 1988** (1). - Copyright protects original works, and **software/source code counts as a literary work**; protection is automatic with no registration (1). - Copying and selling the code without a licence or permission infringes the rights-holder's copyright, who could take legal action (1).

**(b) [2]** — Up to 2 marks: - Copyright protects the **expression** of an idea, not the idea itself (1). - Two programs can solve the same problem independently; reimplementing the algorithm in your own code is not infringement — only copying the actual code is (1). (A patent, if granted, could protect a novel process — but copyright does not.)

*Examiner tip:* The expression-not-idea distinction is the key discriminator here; state it explicitly.

**Question 5 [12] (AO2/AO3)** — Marked by **levels of response**. Read the whole answer, place it in a band, then award a mark within the band.

| Level          | Marks | Descriptor                                                                                                                                                                                                                                                                                                                 |
|----------------|-------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Level 3</b> | 9–12  | Sophisticated, <b>balanced</b> discussion considering <b>multiple stakeholders</b> and <b>both benefits and drawbacks</b> , developed with clear reasoning. Accurate use of relevant terminology and <b>legislation</b> . Sustained line of argument leading to a <b>justified conclusion</b> that takes a clear position. |
| <b>Level 2</b> | 5–8   | Some balanced discussion; relevant points made but <b>limited development or mostly one-sided</b> ; some terminology/legislation; a basic or weakly justified conclusion.                                                                                                                                                  |
| <b>Level 1</b> | 1–4   | <b>Fragmented</b> points, mainly listing one side, little development, little/no use of legislation, no real conclusion.                                                                                                                                                                                                   |
|                | 0     | Nothing creditworthy.                                                                                                                                                                                                                                                                                                      |

**Indicative content** (not exhaustive; credit other valid points): - **Benefits:** faster, consistent decisions; handles huge claim volumes; removes human tiredness/inconsistency; cost savings for government/taxpayers; potentially fairer if rules applied uniformly. - **Drawbacks — AI bias:** trained on historical data, so it can **reproduce and amplify** past bias against certain groups (algorithmic bias). - **Drawbacks — transparency/accountability:** AI is a "black box"; claimants cannot easily understand or appeal a refusal ("computer says no"); unclear **who is responsible** when the system wrongly denies benefits — developer, company or government. - **Drawbacks — human factors:** loss of human

judgement and empathy in sensitive, life-affecting decisions; digital-divide concerns if claimants must interact online. - **Legal framing: DPA 2018 / GDPR** — heart of claims is sensitive personal data, so security, purpose limitation and data minimisation apply; GDPR also gives rights around **automated decision making** (right to human review/to be informed). Job displacement of caseworkers links to **layoffs/automation**. - **Stakeholders:** benefit claimants (esp. vulnerable groups), government/taxpayers, displaced caseworkers, developers, regulators (ICO), society. - **Conclusion:** must take and justify a position, e.g. the system is acceptable only with **bias auditing, transparency, a right to human appeal and human oversight**, rather than fully automated decisions.

*Examiner tip:* Plan 3–4 points each with a counter-argument and at least two named laws before writing; a one-sided list, however long, is capped at Level 2 — the justified conclusion is what unlocks Level 3.